

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
ORLANDO MARTINEZ,

Index No.

Plaintiff,

SUMMONS

- against -

Plaintiff designates
BRONX County
as the place of trial

THE CITY OF NEW YORK, POLICE OFFICER JOSE
VELEZ, POLICE OFFICERS "JOHN DOES" 1 - 4 and
POLICE OFFICER "JANE ROE" intended to be the police
officers who participated in and/or witnessed the arrest of
the plaintiff on or about October 13, 2018.

The basis of venue is
Plaintiff's residence and the
location of the occurrence

Defendants.
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To the above named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
January 3, 2020

Yours, etc. ,

**THE LAW OFFICE OF
PETER PANAS, P.C.**

By: 
PETER PANAS
112 West 34th Street, 18th Floor
New York, New York 10120
(212) 946-4748

TO: DEFENDANTS

THE CITY OF NEW YORK
POLICE OFFICER JOSE VELEZ
POLICE OFFICERS "JOHN DOES" 1 - 4
and POLICE OFFICER "JANE ROE"
c/o James E. Johnson, Esq.
Corporation Counsel of the City of New York
100 Church Street
New York, NY 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
ORLANDO MARTINEZ, Index No.

Plaintiff,

- against -

VERIFIED COMPLAINT

THE CITY OF NEW YORK, POLICE OFFICER JOSE VELEZ, POLICE OFFICERS "JOHN DOES" 1 - 4 and POLICE OFFICER "JANE ROE" intended to be the police officers who participated in and/or witnessed the arrest of the plaintiff on or about October 13, 2018.

Defendants.

-----X

Plaintiff, by his attorneys, THE LAW OFFICE OF PETER PANAS, P.C., complaining of the defendants, respectfully alleges the following:

PARITES

1. At all times hereinafter mentioned, plaintiff ORLANDO MARTINEZ was and still is a resident of Bronx County, New York.
2. At all times hereinafter mentioned, defendant THE CITY OF NEW YORK ("CITY") was and still is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.
3. At all times hereinafter mentioned, defendant JOSE VELEZ was a police officer employed by defendant CITY.
4. At all times hereinafter mentioned, defendants POLICE OFFICER JOHN DOES" 1 - 4 and POLICE OFFICER "JANE ROE" were police officers employed by the defendant CITY who, along with defendant JOSE VELEZ, witnessed and/or participated in the arrest of the plaintiff on or about October 13, 2018.

NOTICE OF CLAIM

5. A Notice of Claim against defendant CITY and six fictitious police officer defendants was duly filed on December 27, 2018.

6. The plaintiff attended a hearing pursuant to Section 50-h of the General Municipal Law on July 24, 2019.

7. By Order dated April 4, 2019, this Court granted plaintiff leave to serve a Notice of Claim upon the individual police officers involved in plaintiff's arrest within ninety (90) days of their identification by defendant CITY.

8. On or about November 14, 2019, defendant CITY served a response to said Order identifying defendant JOSE VELEZ.

9. On November 21, 2019, in accordance with this Court's Order, a further Notice of Claim was filed against defendant JOSE VELEZ.

10. At least thirty (30) days have elapsed since the service of the aforesaid Notices of Claim and the adjustment or payment thereof has been neglected or refused.

UNDERLYING FACTS

11. On or about October 13, 2019, the plaintiff was present at the premises known as 1053 Boynton Avenue, Bronx, New York, where he was employed as the superintendent and maintained a personal residence.

12. While he was in the hallway on the third floor of the building on the way to his basement apartment, plaintiff was approached by two police officers who inquired about his presence there. Plaintiff explained that he was the superintendent of the building and that he had stopped by the third floor at the request of his teenage daughter who resided there and was celebrating her birthday. Shortly thereafter, four additional police officers arrived on the scene.

13. Plaintiff's discussion with the police continued in the presence of his daughter. At approximately 10:45 p.m., without warning and without any provocation from the plaintiff, one of the officers used a taser on him.

14. While plaintiff was incapacitated from being tased, the officer grabbed him and violently threw him down onto the hard stairs where he was violently handcuffed and arrested.

15. None of the other officers present made any efforts to prevent the use of force upon the plaintiff.

16. Upon information and belief, the officers did not have a warrant for the arrest the plaintiff.

17. An ambulance was called and the police officers escorted plaintiff to Jacobi Medical Center where he remained overnight, still handcuffed and also shackled at his feet.

18. The following morning, plaintiff was taken to central booking where he was detained, fingerprinted and photographed. He was released without any charges being filed against him.

**AS AND FOR A FIRST CAUSE OF ACTION:
Unreasonable and Excessive Use of Force 42 U.S.C. 1983**

19. Plaintiff repeats reiterates and realleges each and every allegation set forth in paragraphs "1" through "18" as if set forth in full herein.

20. Due to their conduct while acting under color of law, the defendants deprived the plaintiff of his constitutional rights to be free from the excessive use of force.

21. As a result of the foregoing, plaintiff ORLANDO MARTINEZ sustained severe, serious and permanent personal injuries, was caused to suffer and will continue to suffer physical pain and limitations, and was caused to incur and will continue to incur medical expenses, and was caused to lose and will continue to lose his ordinary wages, all to his detriment and damage in a sum which exceeds the jurisdictional limits of all lower Courts which might otherwise have jurisdiction.

22. That the plaintiff is entitled to punitive damages due to the reckless or callous indifference to his constitutional rights.

**AS AND FOR A SECOND CAUSE OF ACTION:
False Arrest and Imprisonment 42 U.S.C. 1983**

23. Plaintiff repeats reiterates and realleges each and every allegation set forth in paragraphs “1” through “22” as if set forth in full herein.

24. The plaintiff’s arrest was unlawful and without probable cause.

25. Due to their conduct while acting under color of law, the defendants deprived the plaintiff of his constitutional rights to be free from false arrest, detention and/or imprisonment.

26. As a result of the foregoing, plaintiff has been damaged in an amount that exceeds the jurisdictional limits of the lower courts.

**AS AND FOR A THIRD CAUSE OF ACTION:
Failure to Intercede 42 U.S.C. 1983**

27. Plaintiff repeats reiterates and realleges each and every allegation set forth in paragraphs “1” through “26” as if set forth in full herein.

28. Upon information and belief, the defendant police officers each had opportunities to prevent the excessive use of force upon the plaintiff and his unreasonable seizure but due to their intentional conduct or deliberate indifference, declined or refused to do so.

29. As a result of the foregoing, plaintiff has been damaged in an amount that exceeds the jurisdictional limits of the lower courts.

**AS AND FOR A FOURTH CAUSE OF ACTION:
Common Law Assault**

30. Plaintiff repeats reiterates and realleges each and every allegation set forth in paragraphs “1” through “29” as if set forth in full herein.

31. As a result of the foregoing, the plaintiff was reasonably placed in fear of imminent physical harm

32. That the defendants were capable of inflicting harm on the plaintiff and/or the plaintiff reasonably believed that they were capable of doing so.

33. As a result of the foregoing, plaintiff has been damaged in an amount that exceeds the jurisdictional limits of the lower courts.

**AS AND FOR A FIFTH CAUSE OF ACTION:
Common Law Battery**

34. Plaintiff repeats reiterates and realleges each and every allegation set forth in paragraphs “1” through “33” as if set forth in full herein.

35. That the defendants contacted the plaintiff in an offensive manner.

36. That the aforesaid contact was without the plaintiff’s consent and was unreasonable under the prevailing circumstances.

37. As a result of the foregoing, plaintiff was physically harmed and has been damaged in an amount that exceeds the jurisdictional limits of the lower courts.

**AS AND FOR A SIXTH CAUSE OF ACTION:
Common Law False Arrest and Imprisonment**

38. Plaintiff repeats reiterates and realleges each and every allegation set forth in paragraphs “1” through “37” as if set forth in full herein.

39. That the defendants unjustifiably and unlawfully arrested, detained and held plaintiff captive against his will

40. As a result of the foregoing, plaintiff was physically harmed and has been damaged in an amount that exceeds the jurisdictional limits of the lower courts.

**AS AND FOR A SEVENTH CAUSE OF ACTION:
Negligent Hiring and Retention**

41. Plaintiff repeats reiterates and realleges each and every allegation set forth in paragraphs “1” through “40” as if set forth in full herein.

42. That Defendant CITY owed a duty to members of the public including the plaintiff herein to hire competent personnel and to properly train and supervise their employees to ensure that they carried out their duties in a lawful manner.

43. Upon information and belief, the defendant police officers were incompetent and unfit for their positions.

44. Upon information and belief, defendant CITY knew or should have known through the exercise of reasonable diligence that the defendant police officers were potentially dangerous and had previously falsely arrested and/or used excessive force upon civilians and accordingly, it was foreseeable that they would engage in similar conduct again.

45. That the defendant City was thereby negligent in its hiring, retention and/or supervision of the defendant police officers.

46. As a result of the foregoing, plaintiff has been damaged in an amount that exceeds the jurisdictional limits of the lower courts.

**AS AND FOR AN EIGHTH CAUSE OF ACTION:
Respondent Superior**

47. Plaintiff repeats reiterates and realleges each and every allegation set forth in paragraphs “1” through “46” as if set forth in full herein.

48. At all relevant times, the defendant police officers were acting for, upon and in furtherance of the regular operation of their employer, defendant CITY,, and within the scope of their employment

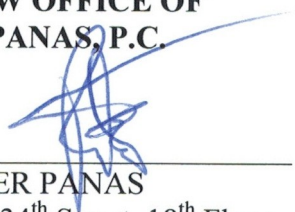
49. By reason of the foregoing, defendant CITY is liable to the plaintiff for the tortious actions of the aforesaid defendants, including assault, battery and false arrest, in an amount that exceeds the jurisdictional limits of the lower courts.

WHEREFORE, the plaintiff ORLANDO MARTINEZ demands judgment over the defendants in a sum that exceeds the jurisdictional limits of all lower Courts which might otherwise have jurisdiction, together with the costs and disbursements of this action and reasonable attorneys fees.

Dated: New York, New York
January 3, 2020

Yours, etc.

**THE LAW OFFICE OF
PETER PANAS, P.C.**

By: 
PETER PANAS
112 West 34th Street, 18th Floor
New York, New York 10120
(212) 946-4748

ATTORNEY'S VERIFICATION

PETER PANAS, an attorney admitted to practice in the Courts of the State of New York, affirms the following under the penalties of perjury:

I am a shareholder of the law firm **THE LAW OFFICE OF PETER PANAS, P.C.**, attorneys for the plaintiff in the within action; I have read the foregoing **SUMMONS & VERIFIED COMPLAINT**, and know the contents thereof; the same is true to my own knowledge, except as to those matters therein stated to be alleged on information and belief, and as to those matters I believe them to be true.

The reason this Verification is made by your affirmant and not by the plaintiff is that the plaintiff is not currently in the County wherein your affirmant maintains his office.

The grounds of affirmant's belief as to all matters not stated upon affirmant's knowledge are from files, investigations and information furnished.

Dated: New York, New York
January 3, 2020



PETER PANAS